

Statement of Work (SOW)
Medical Gas-Venting Evaluation and Monitoring
Veterans Health Care System of the Ozarks (VHSO)
Fayetteville, Arkansas

Contractor shall furnish all management, supervision, labor, materials, equipment, tools, supplies, consumables, parts, and related services, in accordance with the SOW, drawings, and specifications, to provide environmental monitoring for hazardous chemicals and gases in four (4) Operating Rooms (OR), the Post Anesthesia Care Unit (PACU), two (2) Endoscopy Procedure Rooms, one (1) Dental Procedure Room, and the Laboratory Histology and Cytology rooms. Contractor shall also perform annual inspection, repairs, and certification of piped medical gas systems; perform hydrocarbon testing of medical air compressors; and measure and document air flow and hourly air exchange rates in four (4) Operating Rooms, the OR Soiled Utility Room, and the PACU.

Electronic PDF copies of the drawings and specifications for this work will be furnished by VA upon the Contractor's written request to the Contracting Officer (CO). Hard copies of the SOW, drawings, and specifications shall be the Contractor's responsibility and expense. The Contractor must verify all existing and new dimensions, locations, and quantities necessary to complete this project located on the VHSO Main Campus, 1100 N. College Avenue, Fayetteville, AR 72703. The Certification and Accreditation (C&A) does not apply, a Security Accreditation Package is not required.

GENERAL

1. Any provision or partial provision of the Contract, including but not limited to drawings and specifications that is not consistent with this SOW will be null and void only to the extent of the inconsistency. All other provisions or partial provisions of the Contract, including but not limited to, drawings and specifications, shall remain in full force and effect.
2. Safety shall be the Contractor's highest priority.
3. Contractor shall have the following requirements completed prior to beginning site activities:
 - a) Negative TB Test, within the past calendar year.
 - b) Annual influenza shots are required for all staff.
 - c) Additional Personal Protective Equipment (PPE) will be furnished by VHSO for access into COVID patient room(s).
 - d) While on campus, Contractor must wear a visible VHSO issued identity Badge.
4. Period of Performance: Base year plus four option years.
5. This project shall be a turn-key operation in accordance with this SOW, drawings, and specifications to be complete and working system(s).
6. VHSO facility must continue to operate during the contract Period of Performance, including but not limited to, the mechanical and electrical systems.

7. Contractor's work shall be conducted with the least amount of disruption to the VHSO facility.
8. Prior to the start of job site activities, together the Contractor and COR shall conduct a site survey to identify and review specific work and differing site conditions.
9. VHSO utilities and work areas may not be immediately available to the Contractor, and the Contractor must be flexible in the project schedule without additional cost to the Government.
10. Contractor materials, equipment, tools, supplies, consumables, and parts shall not be left unattended within a common work area. When working in common areas, there shall be a minimum of two (2) contractor employees present to ensure that Contractor building materials, including but not limited to, equipment, tools, and supplies are not accessible to others.

QUALIFICATIONS OF CONTRACTOR

1. Contractor and all on-site technicians shall possess and maintain current ASSE Medical Gas Verifier 6020 certified certification. Contractor shall provide documentation of certification with quote submission.
2. Contractor shall possess an Arkansas Contractor License. Proof of license shall be submitted with quote submission.
3. Contractor shall maintain Certificate of calibration for air flow hood and accessories. Proof of certificate shall be submitted with quote submission.

REQUIREMENTS FOR QUOTE

The contractor shall submit the following items with their quote for technical evaluation by the COR. All items will be evaluated in the order of their listing.

1. Contractor Point of Contact: Notify the COR in writing of the name, phone number, email address of the contractor appointed Point of Contact.
 - a) The designated individual shall have full authority to act for the contractor on all matters relating to work performance, to receive, accept and sign for any notices, inspection reports and all other correspondence on behalf of the Contractor from the COR and / or Contracting Officer.
 - b) This individual shall oversee the contractor's worksite operations and ensure all work is performed in accordance with all contract requirements including scheduling, quality, and safety. This individual shall always be available when contract work is in progress, and shall respond to the work site as directed by the COR.
 - c) The Contractor or their designated Point of Contact shall return phone calls or text(s) to the COR within 1 hour of contact and shall return emails from the COR within 24 hours of contact.
2. Licenses / Certifications - Industry certifications - ASSE Medical Gas Verifier 6020. Certificate of calibration for air flow hood and accessories. Arkansas Contractor License

3. Detailed Technical Approach for each task in the SOW. - Address which task will be performed by the prime and subcontractors.
4. List and qualifications of Prime Contractor staff.
5. List of subcontractors if applicable.
 - a) Licenses / Certifications.
 - b) Experience in a healthcare setting of the same size and scope as VHSO.
 - c) List and the qualifications of each member of their staff.
6. Healthcare Resume that demonstrates five (5) continuous years of medical gas testing in a healthcare setting of the same size and complexity as VHSO.

SCOPE OF WORK:

1. Contractor shall ensure all scheduling dates and times are coordinated between COR and VHSO staff to ensure all testing requirements are met (i.e. Waste Gas Exposure to OR staff). Regular Business Hours: Contractor shall schedule all work with the COR no later than fifteen calendar (15) days prior to arriving on site. Contractor must check in with the COR immediately upon arriving on site and before starting work.
2. All work shall comply with drawings, current editions of the NFPA 99 Health Care Facilities Code, NFPA 55 Compressed Gases and Cryogenic Fluids Code, VA Plumbing Design Manual PG-18-10, February 1, 2024, and manufacturers specifications.
3. Contractor except as noted otherwise shall:
 - 3.1** Furnish labor and materials to:
 - a.) Monitor Hazardous Chemical and Vapors.
 - I. Quarterly sample Operating Room (OR) Post Anesthesia Care Unit (PACU) and Room 2236-21 personnel for Nitrous Oxide, Isoflurane, Sevoflurane and Desflurane. Samples shall be taken from four (4) ORs and one (1) PACU under actual conditions of use. One Hundred percent (100%) of both the OR and PACU personnel shall be sampled over the course of one (1) year. Scheduling must be determined based on personnel scheduling and staffing. Data collected is to be documented in PDF format and submitted to the COR within fifteen (15) calendar days of collecting data.
 - II. Semi-annually conduct Formaldehyde exposure sampling using Time Weighted Average/Short Term Exposure Limit (TWA/STEL). Samples shall be taken from the below listed rooms and personnel during their routine activities of pouring and filling in accordance with OSHA 1910.1048. Document all findings in PDF and submit them to the COR within fifteen (15) days of completion of testing.
 - Room 340-01, OR-1.
 - Room 341-01, OR-2.
 - Room 345-01, OR-3.
 - Room 346-01, OR-4.

Room 302-01, Endoscopy A.
Room 303-01, Endoscopy B.
Room 1337-21, Dental Treatment 16.
Room 3215-02, Cytology
Room 3216-02, Histology

b.) Measure room ventilation semi-annually. Air flow capture hood and accessories shall be calibrated and have certificate of calibration on hand.

- I. Room pressure differentials shall be measured with a certified manometer between each of the following spaces. Data collected is to be documented in PDF format with certificate of calibration for all instruments must be attached and submitted to the COR within fifteen (15) calendar days of collecting data.

Room 340-01 and corridor C308-01.
Room 340-01 and room 337-01.
Room 341-01 and corridor C308-01.
Room 341-01 and room 337-01.
Room 345-01 and corridor C309-01.
Room 345-01 and room 337-01.
Room 346-01 and corridor C308-01.
Room 346-01 and room 337-01.
Room 324-01 and corridor C309-01.
Room 324-01 and corridor C303-01.

- II. Measure supply and exhaust air cubic feet per minute (cfm) for each diffuser and calculate air changes per hour (ACH) for the rooms listed below. Document all measurements in PDF and submit them to the COR within fifteen (15) calendar days of testing:

Room 340-01 OR 1
Room 341-01 OR 2
Room 345-01 OR 3
Room 346-01 OR 4
Room 350-01 Soiled Utility
Room 324-01 PACU

c.) Annually inspect and certify critical components of piped medical gas systems listed below in accordance with Veterans Affairs (VA) directives, The Joint Commission standards and NFPA-99. Testing must be completed no later than 30 days from the day testing work is started. All deficiencies shall be documented and submitted to the COR within fifteen (15) calendar days of completing the inspection.

1. Master and area alarms.
2. Source equipment.
3. Automatic pressure switches.
4. Shutoff valves.
5. Flexible connectors.

6. Outlets (wall, ceiling, and boom arm). Outlets must be tested

for: Flow, Functionality, and Purity (particulate, gas concentration and cross-connection).

d.) Perform Quarterly hydrocarbon testing of medical air compressors.

3.2 Contractor will provide annual Medical Gas Maintenance Training for up to 5 VA employees with a certified instructor that possesses an ASSE Certificate of 6030 or higher.

3.3 Emergency/Unscheduled Repairs –

The Contractor shall provide emergency or unscheduled medical gas system repairs when authorized in writing by the Contracting Officer (CO). Each individual emergency/unscheduled repair action shall not exceed \$25,000.00.

For each repair request, the Contractor shall submit a detailed, itemized quotation that includes: (i) each part to be repaired or replaced (part number and part name); (ii) unit material cost for each part; (iii) labor hours and labor category for each part or task; (iv) applicable overhead/profit; and (v) the total proposed price.

Quotations that are incomplete or inaccurate may be rejected. The CO will determine price fairness and reasonableness consistent with FAR Part 13 and will document the basis for such determinations. The CO, in consultation with the COR, may invite the Contractor to revise and resubmit a quotation to correct errors or adjust pricing.

If acceptable pricing cannot be obtained, the Government may acquire the repairs under a separate procurement, conducted in accordance with applicable competition, justification, and documentation requirements. Nothing herein authorizes the COR to make commitments or changes that affect price, quantity, quality, or delivery.

CONTRACTOR ACCESS AND ACTIVITIES:

A. Records Management: Contractors whose employees create, work with, or otherwise handle Federal records, as defined in Section B, regardless of the medium in which the record exists.

1. Federal record” as defined in 44 U.S.C. § 3301, includes all recorded information, regardless of form or characteristics, made or received by a Federal agency under Federal law or in connection with the transaction of public business and preserved or appropriate for preservation by that agency or its legitimate successor as evidence of the organization, functions, policies, decisions, procedures, operations, or other activities of the United States Government or because of the informational value of data in them.

a) The term Federal record:

- (1) Includes U.S. Department of Veterans Affairs (VA) records.

- (2) Does not include personal materials.
 - (3) Applies to records created, received or maintained by Contractors pursuant to the VA contract.
 - (4) May include deliverables and documentation associated with deliverables.
2. Contractor shall comply with all the applicable records management laws and regulations, as well as National Archives and Records Administration (NARA) records policies, including but not limited to the Federal Records Act (44 U.S.C. chs. 21, 29, 31, 33), NARA regulations at 36 CFR Chapter XII Subchapter B, and those policies associated with the safeguarding of records covered by the Privacy Act of 1974 (5 U.S.C. 552a). These policies include the preservation of all records, regardless of form or characteristics, mode of transmission, or state of completion.
 3. In accordance with 36 CFR 1222.32, all data created for Government use and delivered to, or falling under the legal control of, the Government are Federal records subject to the provisions of 44 U.S.C. chapters 21, 29, 31, and 33, the Freedom of Information Act (FOIA) (5 U.S.C. 552), as amended, and the Privacy Act of 1974 (5 U.S.C. 552a), as amended and must be managed and scheduled for disposition only as permitted by statute or regulation.
 4. In accordance with 36 CFR 1222.32, Contractor shall maintain all records created for Government use or created while performing the contract and/or delivered to, or under the legal control of the Government and must be managed in accordance with Federal law. Electronic records and associated metadata must be accompanied by sufficient technical documentation to permit understanding and use of the records and data.
 5. VA and its contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Records may not be removed from the legal custody of VA or destroyed except for in accordance with the provisions of the agency records schedules and with the written concurrence of the Head of the Contracting Activity. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2701. In the event of any unlawful or accidental removal, defacing, alteration, or destruction of records, Contractor must report to VA. The agency must report promptly to NARA in accordance with 36 CFR 1230.
 6. The Contractor shall immediately notify the appropriate Contracting Officer upon discovery of any inadvertent or unauthorized disclosures of information, data, documentary materials, records, or equipment. Disclosure of non-public information is limited to authorized personnel with a need-to-know as described in the contract. The Contractor shall ensure that the appropriate personnel, administrative, technical, and physical safeguards are established to ensure the security and confidentiality of this information, data, documentary material, records and/or equipment is properly protected. The Contractor shall not remove material from Government facilities or systems, or facilities or systems operated or maintained on the

Government's behalf, without the express written permission of the Head of the Contracting Activity. When information, data, documentary material, records and/or equipment is no longer required, it shall be returned to VA control, or the Contractor must hold it until otherwise directed. Items returned to the Government shall be hand carried, mailed, emailed, or securely electronically transmitted to the Contracting Officer or address prescribed in the contract. Destruction of records is EXPRESSLY PROHIBITED unless in accordance with Paragraph (4).

7. The Contractor is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (sub-contractor) in support of this contract requiring the disclosure of information, documentary material and/or records generated under, or relating to, contracts. The Contractor (and any sub-contractor) is required to abide by Government and [Agency] guidance for protecting sensitive, proprietary information, classified, and controlled unclassified information.
8. The Contractor shall only use Government IT equipment for purposes specifically tied to or authorized by the contract and in accordance with VA policy.
9. The Contractor shall not create or maintain any records containing any non-public VA information that are not specifically tied to or authorized by the contract.
10. The Contractor shall not retain, use, sell, or disseminate copies of any deliverable that contains information covered by the Privacy Act of 1974 or that which is generally protected from public disclosure by an exemption to the Freedom of Information Act.
11. The VA owns the rights to all data and records produced as part of this contract. All deliverables under the contract are the property of the U.S. Government for which VA shall have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest. Any Contractor rights in the data or deliverables must be identified as required by FAR 52.227-11 through FAR 52.227-20.
12. Training. All Contractor employees assigned to this contract who create, work with, or otherwise handle records are required to take VA provided records management training. The Contractor is responsible for confirming training has been completed according to agency policies, including initial training and any annual or refresher training.
13. The Contractor shall incorporate the substance of this clause, its terms and requirements including this paragraph, in all subcontracts under this contract, and require written subcontractor acknowledgment of same.
14. Violation by a subcontractor of any provision set forth in this clause will be attributed to the Contractor.

B. Security/Badging: Contractor shall notify COR when arriving on VHSD station. While on campus, Contractor must wear a visible identity badge. Contractor will be subject to a background investigation to obtain a VHSD PIV badge. Contractor can be subject to inspection of personal effects when entering or leaving the project site and

VHSO property.

C. Property Access Work Hours:

15. Regular Business Hours: Contractor must schedule all work between hours of 0700 – 1600 hrs. Monday through Friday (excluding the following Federal holidays - New Year's Day, Martin Luther King Day, Presidents Day, Memorial Day, Juneteenth, Independence Day, Labor Day, Columbus Day, Veterans Day, Thanksgiving Day, and Christmas Day) with the COR.

D. Equipment and Tools: Contractor shall furnish all equipment and tools to meet requirements in the SOW.

E. Radios and Mobile Devices: Contractor shall use mobile devices at low volume or outside. Contractor shall not carry on conversations in hallways or near any patient areas. AM/FM radios and other media producing devices shall not be used on VHSO property.

F. Photography: Contractor shall coordinate and schedule with COR. Contractor must be escorted by VHSO personnel to take job site-related photos. Contractor shall not photograph any patients, personnel, visitors, and others on VHSO property.